CFI 053/2024 Qatar General Insurance & Reinsurance Company QSPC v Emrgent Risk Solutions Limited

DECEMBER 17, 2025 COURT OF FIRST INSTANCE - ORDERS

Claim No: CFI 053/2024

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

QATAR GENERAL INSURANCE & REINSURANCE COMPANY QSPC

Claimant

and

EMRGENT RISK SOLUTIONS LIMITED

Defendant

ORDER WITH REASONS OF H.E. JUSTICE SAPNA JHANGIANI

UPON the Defendant's Application No. CFI-053-2024/5 dated 14 November 2025 to adjourn the Trial scheduled for 26 to 29 January 2026 (the "Application Part 1"), and to adduce further expert evidence (the "Application Part 2")

AND UPON reviewing the Claimant's evidence dated 3 December 2025 filed in response to the Application

AND UPON reviewing the Defendant's evidence in reply dated 8 December 2025

AND UPON hearing Counsel for the Claimant and Counsel for the Defendant at the pre-trial review held on 15 December 2025 before H.E. Justice Sapna Jhangiani (the "PTR")

AND UPON reviewing the Rules of the DIFC Courts ("RDC")

IT IS HEREBY ORDERED THAT:

1. The Application Part 1 is dismissed, having been withdrawn by the Defendant during the PTR.

2. The Application Part 2 is adjourned to be determined at the Trial.

3. The Defendant will inform the Claimant of any further points of admission in relation to the Claimant's case by **4pm (GST) on 2 January 2026.**

4. By **4pm (GST) on 2 January 2026**, the Defendant will file a witness statement explaining why the Defendant has sought the Court's permission for the expert witness appointed by the Defendant, Mr Mohamed L H Al Muhannadi, to provide his evidence in Arabic with the assistance of an English interpreter, given that his expert report was provided in clear English.

5. The Claimant will provide drafts of an amended agreed case memorandum and an amended list of issues to the Defendant by **4pm (GST) on 9 January 2026.**

6. The Defendant will provide comments to the Claimant on the drafts referred to at paragraph 5 above by **4pm (GST) on 14 January 2026**.

7. The Claimant will file an amended agreed case memorandum and amended list of issues by **4pm (GST) on 16 January 2026.**

8. The Claimant will file its skeleton argument for the Trial by **4pm (GST) on 21 January 2026**.

9. The Defendant will file its skeleton argument for the Trial by **4pm (GST) on 22 January 2026**.

10. The Trial shall take place in person in the courtroom of the DIFC Courts from **26 January 2026** for four days.

11. The expert witness appointed by the Defendant, Mr Mohamed L H Al Muhannadi, may provide his evidence at the Trial with the assistance of an interpreter.

12. Mr Vembully Tommy, one of the factual witnesses of the Defendant, shall provide his evidence at the Trial by video link.

13. The Defendant shall pay the Claimant its costs of the Application Part 1, which are immediately assessed on a standard basis in the sum of 123,500.00. The Defendant shall pay that sum to the Claimant within 21 days by **6 January 2026**.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 17 December 2025

At: 9am

SCHEDULE OF REASONS

1. The Claimant's costs of the Application Parts 1 and 2 were provided in an amended costs schedule dated 16 December 2025, filed with an accompanying note. The total costs claimed for the Application by the Claimant were AED 370,110.19 (the "Application Costs").

2. The Claimant argued in oral submissions that half to two-thirds of the Application costs should be allocated to its costs of the Application Part 1. The Defendant argued that the proportion should be 30% to 40%. I find that 50% of the Application Costs should be allocated to the Claimant's costs of the Application Part 1, such that I must assess the Claimant's costs of Application 1 assuming a total cost to the Claimant of AED 185,055.10 (50% of AED 370,110.19).

3. Pursuant to RDC 38.2, when assessing costs on a standard basis the Court must be satisfied, having regard to all the circumstances, that the costs were proportionately and reasonably incurred, and were proportionate and reasonable in amount. The receiving party carries the burden of proof in satisfying the Court of these factors. The Court must have regard to the factors set out at RDC 38.23 in determining costs, including the complexity of the matter.

4. Commenting on the Claimant's costs schedule, the Defendant submitted that the work done on documents was excessive; the Defendant's team was overly resourced; and it was not necessary for the Claimant to be represented by two Counsel at the PTR. In response, the Claimant submitted that this case comprises heavy, complex litigation; the Claimant's team comprised people of different seniorities, with the work appropriately divided between them; and the Claimant prepared the bundle running to some 1500 pages, which amounted to significant work.

5. Taking into account all the matters referred to at RDC 38.23 and set out above, and as is appropriate when assessing costs on an immediate basis, I apply a broadbrush approach in assessing the Claimant's costs of Application 1, and in applying an appropriate discount to the full costs claimed such that the costs recovered are both reasonable and proportionate in accordance with RDC 38.2. In all the circumstances, I consider that an amount of AED 123,500.00 is appropriate, and I immediately assess the Claimant's costs of Application 1 in this amount.

6. The Defendant requested a period of 21 days to make payment to the Claimant, given the upcoming end of year period, and this request is granted.

7. The remaining 50% of the Claimant's Application Costs at AED 185,055.10 shall be determined at a future stage of these proceedings.